

July 27, 2026
Dept. 9
Probate Tentative Rulings

16.	26PR0044	ESTATE OF STEVEN MICHAEL HUIZENGA
PETITION HEARING		

Before the Court are two Petitions: 1) Petition to Determine Succession to Primary Residence; and 2) Petition to Determine Validity of Will; Will Contest.

Petition to Determine Succession to Primary Residence

A Petition to Determine Succession to Primary Residence was filed by Lorraine Claire Tassi, on February 11, 2026. An Objection of Lori Huizenga-Young to Petition to Determine Succession to Primary Residence; Request for Continuance was filed on April 3, 2026. The matter was continued to July 6, 2026, and was thereafter continued to July 27, 2026.

Petitioner, Lorraine Claire Tassi ("Petitioner Tassi") requests a determination that the real property at 3735 Springer Road, Placerville, CA 95667 was Decedent's, Steven Michael Huizenga ("Decedent") primary residence and is property passing to Petitioner Tassi.

Petitioner declared that Decedent died testate on December 9, 2025, and attached a copy of the purported Last Will and Testament of Steven Michael Huzienga (the "Will"). An Inventory and Appraisal was attached to the Petition, which shows the gross value of the real property is \$432,000, which does not exceed the limit pursuant to Probate Code § 13152(a)(2). The Petition indicates Decedent is survived by two adult children, Lori Huizenga and Aaron Keith Huizenga.

The Will provides that all real and personal property ("Residual Estate") is to be distributed to Petitioner Tassi. The Will identifies Decedent has two children, Lori Huizenga and Aaron Keith Huzienga. The Will contains an "Exclusions" provision that states that "It is my intention under this Will to specifically exclude the following individuals from receiving any portion of my Residual Estate: Lori Huizenga [and] Aaron Keith Huizenga." The Will was signed by Decedent and two witnesses on November 2, 2025.

Lori Huizenga-Young objects to the Petition on the grounds that the validity of the purported Will is disputed, a will contest petition is being filed, and granting the Petition would be irreversible and prejudicial.

Petition to Determine Validity of Will; Will Contest

On June 10, 2026, a Petition to Determine Validity of Will; Will Contest was filed by Lori Huizenga-Young ("Petitioner Huizenga-Young"). A Response to Will Contest was filed by Lorrain Claire Tassi ("Ms. Tassi") on June 30, 2026.

Petitioner Huizenga-Young requests the Court declare the purported Last Will and Testament of Steven Michael Huizenga (the "Will") invalid in its entirety on the grounds of: 1)

lack of testamentary capacity; 2) undue influence; 3) failure of execution formalities; and 4) fraud. Upon a finding of invalidity, Petitioner Huizenga-Young asserts she and Aaron Keith Huizenga are entitled to receive Decedent's estate in equal shares under California intestate succession law.

Petitioner Huizenga-Young asserts at the time the purported Will was executed, Decedent was suffering from physical and/or cognitive impairment that deprived him of the capacity to execute a valid testamentary instrument. Petitioner Huizenga-Young is under the information and belief that Ms. Tassi was providing personal, health, or caretaking services to Decedent in the period preceding his death, and Decedent was a dependent adult as defined under Welfare and Institutions Code § 15610.23, which if established, triggers the statutory presumption of undue influence under Probate Code § 21380.

The circumstances of the purported Will also support a finding of undue influence: 1) Decedent disinherited both of his natural children in favor of a non-family friend; 2) the purported Will appears to have been prepared without independent legal counsel representing Decedent's interests; and 3) the nature and duration of the relationship between the Decedent and Ms. Tassi, the degree of her access to him in his final months, and her role in procuring the purported Will are all facts bearing on undue influence.

Petitioner Huizenga-Young contends the purported Will may not have been executed in compliance with Probate Code § 6110. The identity, competence, and availability of the witnesses, and whether they were present at the same time and understood what they were witnessing, are matters of fact to be established at trial.

Petitioner Huizenga-Young argues that Ms. Tassi, or others acting in concert with her, may have made false representations to Decedent concerning the nature, effect, or consequences of the document he executed, or may have concealed information from him, in order to induce Decedent to execute the purported Will.

Ms. Tassi asserts that Petitioner Huizenga-Young did not see or speak to Decedent in 30 years and accordingly has no knowledge of Decedent's physical or mental condition in his last months, nor does she know Ms. Tassi or the nature of her relationship with Decedent. Ms. Tassi believes that Decedent drafted his Will on his personal computer in early October 2025 before he was hospitalized, despite it not being signed until November 2025.

The Joint Declaration of Lois Gorman and Michael Gorman provides that Decedent requested they witness his signing of the Will, and that Ms. Tassi was not in the room when they signed as witnesses. However, the witnesses did not see Decedent sign the Will himself. Ms. Tassi and the witnesses contend that Decedent was competent to sign a Will.

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In September 2025, Decedent was diagnosed with a cancerous mass in his brain and surgery was performed. Ms. Tassi contends that she was a friend of Decedents for at least 20 years and did not provide any health or social services to Decedent during his time; however, she did assist him in cleaning/decluttering his home to make it safe for his return home from the hospital. She also purchased food for him which he could microwave and visited him intermittently, all without charge.

TENTATIVE RULING #16:

APPEARANCES ARE REQUIRED AT 8:30 A.M. ON MONDAY, JULY 27, 2026, IN DEPARTMENT NINE.

IF A PARTY OR PARTIES WISH TO APPEAR BY ZOOM, PLEASE CONTACT THE COURT AT (530) 621-5867 AND MEETING INFORMATION WILL BE PROVIDED.